PRINCE SITHOLE
versus
THE STATE

HIGH COURT OF ZIMBABWE
ZHOU and CHIKOWERO JJ
HARARE; 17 July 2023

Criminal Appeal

Appellant in person
T Mapfuwa, for the respondent

CHIKOWERO J

[1] On 17 July 2023 this court delivered an ex-tempore judgement dismissing the applicant's appeal against the sentence imposed on him by the Regional Court sitting at Murewa (the lower court).

[2] The appeal was heard and disposed of before the introduction of the Integrated Electronic Case Management System in the Appeals Division of the High Court.

[3] The Court became aware that the appellant had requested reasons for its decision on perusing his application for leave to appeal its decision, out of time and in person, to the Supreme Court. The application was filed on the Integrated |Electronic Case Management System and allocated to one of the judges who was on the panel of judges who had heard the appeal

[4] The following are the reasons for the dismissal of the appeal.

[5] On 23 October 2019 the appellant appeared before the lower court where upon he pleaded guilty to one count of theft as defined in s 113(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Act).

[6] He was convicted on his own plea and sentenced to ten years imprisonment of which two years were suspended for five years on the usual conditions of good behaviour. The effective sentence was eight years imprisonment.

[7] The facts of the case were these. The appellant, then twenty-three years old, stole a Nissan vehicle on 18 October 2019. This motor vehicle, which belonged to one

Christopher Bopera, was stolen while it was parked in the complainant's yard in Mushore village, Chief Mangwende in Murewa. The offence occurred in broad daylight between 0800 hours and 1300hours.

[8] The appellant, who resided in Kadzere village, Chief Mangwende in Murewa, then drove the motor vehicle to Gazaland, Highfields, Harare.

[9] On 19 October 2019 around 1100hrs the appellant approached one Batsirai Matsika (Matsika). He told the latter that he was selling a motor vehicle engine.

[10] Matsika then referred the appellant to a car breaker called Tongai Matsika (Tongai).

[11] After the appellant had struck a deal with Tongai, Matsika towed the motor vehicle to Tongai's workplace where the engine and gear box were removed from the stolen vehicle.

[12] Tongai turned out to be an informant. He caused the arrest of the appellant while the latter was busy breaking up the motor vehicle for parts. Two other persons, who were participating in breaking up the motor vehicle were still at large when the appellant appeared before the lower court.

[13] The stolen motor vehicle was valued at RTGS $50 000. It was recovered.

[14] In his favour, the lower Court considered that the appellant was a youthful first offender who had pleaded guilty. It also took into account that the appellant, who was single and had no children, did not benefit from the crime because the motor vehicle was recovered.

[15] In aggravation, the lower court considered that theft of a motor vehicle was a serious offence, that a motor vehicle was a capital asset which was not easy to replace, that the disappearance of the motor vehicle traumatized the complainant, that were it not for the tip off there would not have been recovery of the subject of the theft and that such recovery was effected while the appellant was breaking up the car.

[16] In balancing the mitigating factors against those aggravating the offence, the lower court, in the exercise of its discretion, found that the latter outweighed the former with the result that a custodial sentence was inevitable. It considered that a sentence that would deter the appellant and other would-be offenders was called for.

[17] Two issue arise from the appellant's three grounds of appeal. First, whether the lower court accorded insufficient weight to his plea of guilty and his status as a

first offender. Second, whether the sentence imposed is manifestly harsh and excessive as to induce a sense of shock.

[18] We are an appellate court. Accordingly, we do not interfere with a sentence imposed by a lower court (which exercises discretionary power in sentencing) unless the sentence is vitiated by irregularity or misdirection or is so severe that no reasonable Court would have imposed it. See *S* v *Ramushu and Ors* S 25/93, *S* v *Nhumwa* S 40/88 and *S* v *Mundowa* 1998 (2) ZLR 392 (H)

[19] The sentence is not afflicted with irregularity because it does not exceed the maximum, custodial penalty of twenty-five years provided for in s 113 (1) (a) (b) (ii)of the Act.

[20] Neither is it marred by misdirection. The lower court accorded sufficient weight to the appellant's plea of guilty and his status as a first offender. Those factors taken together with the other mitigating factors mentioned at para 14 of this judgments were outweigh by the aggravating factors with the result that a custodial sentence was justified.

[21] Nor can the sentence be characterized as manifestly harsh and excessive as to induce a sense of shock. This was a clearly premeditated crime the commission of which was well executed. The appellant, despite being a first offender and five years after attaining majority status, exhibited criminal resolve and sophistication both in the commission of the offence and the disposal of the motor vehicle such as merited the sentence imposed on him. Indeed, theft of a motor vehicle is a serious offence. The appellant and others of his ilk need to be deterred through imposition of a custodial sentence of sufficient duration. We think the lower court did exactly that in settling for the sentence that it did. The moral blameworthiness of the appellant was high. He stole the motor vehicle in broad daylight while it was parked by the owner in the safety of his own yard in the rural area. The appellant drove the vehicle to Gazaland, Highfields, Harare where he proceeded to strip the vehicle of its parts so that he would sell the same. As rightly observed by the lower court the theft traumatized the complainant. Not much credit accrued to the appellant from the fact that the vehicle was recovered. Not only was the recovery without the efforts of the appellant but he was stripping the vehicle when such recovery, enabled by the whistle blower, was effected.

[22] The appeal is meritless.

[23] The appeal be and is dismissed.

CHIKOWERO J:.....

ZHOU J:..... Agrees

The National Prosecuting Authority, respondent's legal practitioners.